

investigation of Plaintiff's August 9, 2022 injuries and determined that Plaintiff failed to immediately report his injury pursuant to the Employee Handbook. (UF #38.) Because this was Plaintiff's fourth infraction in an 8-month period in violation of the CBA, Kanow and Vargas determined Plaintiff should be terminated. (UF #39.) Neither Kanow nor Vargas has ever been an officer, corporate director, or managing agent for Defendant. (UF #58-59.) Accordingly, the decisionmakers did not act with fraud, oppression, or malice.

Defendant satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3), shifting the burden to Plaintiff. Plaintiff failed to present evidence to rebut Defendant's evidence. Accordingly, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

The unopposed motion for summary judgment is granted.

A hearing re: proposed judgment is set for September 16, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than September 1, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 11, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504234	HARTWELL vs DC LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS, LLC

Tentative Ruling:

The motion is taken off calendar as this Court does not currently have jurisdiction to grant relief due to the arbitration stay.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

Where responses to document requests have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may